

24STCV32099 24STCV32099

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV32099 Hearing Date: August 6, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:03 PM on August 5, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 5, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs

allege that Defendants were responsible for the sale of a chemical compound mixed with nitrous oxide to Plaintiffs' son, who drove while under the impairment of that recreational chemical, and crashed the vehicle, with his brother as a passenger. Both minor sons of Plaintiffs passed away from their injuries.

Defendant

Nevada Tobacco Distribution dba Cali King Wholesale demurs to the First Amended Complaint.

TENTATIVE RULING

Defendant Nevada Tobacco Distribution dba Cali King Wholesale's demurrer to the First Amended Complaint is OVERRULED as to the first cause of action. Defendant is to answer the First Amended Complaint within 10 days.

The Court

notes that there is a motion to stay the entire action currently scheduled to be heard on September 15, 2026.

ANALYSIS

Meet and Confer

The

Declaration of Omid J. Shirazi reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 430.41.

Discussion

Defendant

Nevada Tobacco Distribution dba Cali King Wholesale (hereinafter "NTD") demurs to the First Amended Complaint as follows:

1. First

Cause of Action (Wrongful Death—General Negligence).

Defendant

argues that the 1AC fails to state specific facts showing any affirmative conduct constituting misfeasance on the part of NTD which contributed to plaintiffs' injuries. Defendant argues that NTD did not control the downstream retailer, the purchaser, or the manner in which the product was ultimately used. Nor did NTD encourage, disseminate, direct, or participate in any unlawful conduct. The alleged harm outlined in the FAC instead arises from independent intervening acts namely, the retailer's unlawful sale of nitrous oxide to a minor and the minor's subsequent misuse of the product,

while driving a vehicle intoxicated. Unlike in *Weirum*, where the defendant's conduct actively created the dangerous condition, NTD's alleged conduct consists solely of placing a lawful product into the stream of commerce.

Defendant

argues that to the extent Plaintiff's claims sound in malfeasance, NTD does not owe Plaintiffs a duty. Nor does NTD have a duty to control third party conduct—such as the sale of “Gold Whip” to a minor—based on a special relationship. Defendant argues that the alleged harm stems from three forms of illegal conduct by the retailer(s) and Plaintiffs. This conduct, which Defendant argues was not foreseeable to NTD, are:

(1) The criminal

conduct involved Retailer Parties' alleged criminal sale of nitrous oxide to minors in violation of Penal Code, § 381(c), which is not a conduct for which NTD can be held liable;

(2) The criminal

conduct is Plaintiffs inhaling the subject nitrous oxide Gold Whip product in violation Penal Code § 381(b);

(3) The criminal

conduct is Plaintiffs driving while under the influence in violation of Vehicle Code, §§ 23152, 23153.

Defendant

also argues the foregoing breaks the chain of causation.

Plaintiffs

argue that their claim does not depend upon the existence of any special relationship and does not depend upon any freestanding duty to control the retailer or either decedent. Rather, as pled, the Plaintiffs' claim for negligence rests on NTD's own negligent distribution of the Gold Whip product to the retailer.

The 1AC alleges

as follows:

27. The nitrous oxide provided to Decedent

David Ceja was labeled “Gold Whip” and is designed to be attractive to minors and others intending to use the nitrous oxide in an improper, dangerous recreational

manner to become impaired.

28. The “Gold Whip” was distributed to Defendants Sinnar, LLC, Sarah Dafalla Ibrahim, Sinnar Smoke Mini Mart, K and C Investment, LP, James Wha Chung, CRN 29 Investment Group, Inc., Mohamed Elshehawy, and Does 5 through 50 by Defendants Cali King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50.

a. Without limitation, in or around February and March 2024, Defendants Cali King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50, distributed to Defendants CRN 29 Investment Group, Inc. and Mohamed Elshehawy, eight 4-L containers of “Gold Whip” nitrous oxide, thirty-six 1-L containers of “Gold Whip” nitrous oxide, and sixty 0.3-L containers of “Gold Whip” nitrous oxide, and shipped the same to the location of the Smoke Shop.

b. On information and belief, before the incident Defendants Cali King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50, distributed to Defendants CRN 29 Investment Group, Inc. and Mohamed Elshehawy, “Gold Whip” nitrous oxide products in variously sized containers including, without limitation, 4-L containers, 3.3-L containers, 1-L containers, and 0.3-L containers, and shipped the same to the location of the Smoke Shop.

c. On information and belief, Defendants Cali King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50, distributed the nitrous oxide product that was later sold to Decedent David Ceja at the location of the Smoke Shop.

d. Such distribution to such a small smoke shop in proximity to and serving minors, of such large quantities of nitrous oxide products, were red flags, made diversion probable, and materially increased the risk of the kind of harm asserted herein.

29. Based on the nature of the retail channel and the unusually large quantities and frequency of nitrous oxide canisters supplied into that channel as alleged above, Cali King Wholesale, Nevada Tobacco Distribution, and DOES 5-50, knew or had reason to know that the nitrous oxide canisters were not being acquired for legitimate purposes, but were instead being acquired for unlawful retail sales for recreational inhalation—including sales to minors—and that such sales would foreseeably result in dangerous impairment, loss of consciousness/asphyxiation, and other grave injuries. By continuing

to supply nitrous oxide canisters into that diversion channel in the quantities and manner alleged, the Distributor Defendants affirmatively created and/or materially increased the risk of the very harm that occurred.

30. Defendants Cali King Wholesale, Nevada

Tobacco Distribution, and Does 5 through 50 distributed nitrous oxide to Defendants Sinnar, LLC, Sarah Dafalla Ibrahim, Sinnar Smoke Mini Mart, K and C Investment, LP, James Wha Chung, CRN 29 Investment Group, Inc., Mohamed Elshehawy, and Does 5 through 50 despite the fact that Defendants Cali King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50 knew or should have known that Defendants Sinnar, LLC, Sarah Dafalla Ibrahim, Sinnar Smoke Mini Mart, K and C Investment, LP, James Wha Chung, CRN 29 Investment Group, Inc., Mohamed Elshehawy, and Does 5 through 50 were acquiring the nitrous oxide to distribute to minors and others intending to use the nitrous oxide in an improper, dangerous recreational manner to become impaired. Without limitation:

a. Defendants Cali King Wholesale, Nevada

Tobacco Distribution, and Does 5 through 50 knew or should have known that Defendants Sinnar, LLC, Sarah Dafalla Ibrahim, Sinnar Smoke Mini Mart, K and C Investment, LP, and James Wha Chung, operated a "smoke shop" at the Smoke Shop location;

b. Defendants Cali King Wholesale, Nevada

Tobacco Distribution, and Does 5 through 50 knew or should have known that Defendants Sinnar, LLC, Sarah Dafalla Ibrahim, Sinnar Smoke Mini Mart, K and C Investment, LP, and James Wha Chung, did not operate at the Smoke Shop location any culinary establishment, culinary supply store, medical office, medical supply store, or other business purporting to have a legitimate use for, or to sell to legitimate users of, nitrous oxide;

c. Defendants Cali King Wholesale, Nevada

Tobacco Distribution, and Does 5 through 50 knew or should have known that nitrous oxide is frequently diverted for recreational misuse by minors;

d. On information and belief, Defendants

Cali King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50 omitted to inquire into who Defendants Sinnar, LLC, Sarah Dafalla Ibrahim, Sinnar Smoke Mini Mart, K and C Investment, LP, and James Wha Chung had sold, or would sell, nitrous oxide; and

e. On information and belief, Defendants

Cali King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50 omitted to require Defendants Sinnar, LLC, Sarah Dafalla Ibrahim, Sinnar Smoke Mini Mart, K and C Investment, LP, and James Wha Chung to refrain from selling nitrous oxide to minors or to others for recreational or other improper or dangerous use.

31. The nitrous oxide canisters at issue

were distributed and sold without adequate warnings and instructions that would reasonably and effectively alert ordinary consumers (and retailers in the chain of distribution) to the foreseeable dangers of recreational inhalation, including rapid impairment, loss of consciousness, hypoxia/asphyxia, and death, and the heightened danger of operating a motor vehicle after inhalation. The absence and inadequacy of these warnings made the product unsafe for its foreseeable uses and misuses, and contributed to the injuries and deaths alleged herein.

32. On or about June 4, 2024, shortly after

acquiring the nitrous oxide as specified herein, Decedent David Ceja used the nitrous oxide, became impaired, and operated a motor vehicle.

33. Due to the impairing effect of the nitrous

oxide, Decedent David Ceja operated the motor vehicle in an unsafe manner resulting in a motor vehicle collision in which Decedents David Ceja and Hector Ceja, Jr. were both severely injured.

34. Decedents David Ceja and Hector Ceja,

Jr. eventually died of the injuries suffered in the motor vehicle collision.

...

37. At all relevant times, Defendants Cali

King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50 had a duty of reasonable care in the operations of their business(es). These defendants, as commercial distributors who supplied nitrous oxide canisters into the retail stream of commerce, owed the Plaintiffs and the Decedents a duty to use reasonable care in the manner and circumstances of distribution so as not to supply nitrous oxide canisters in a way that creates an unreasonable risk of foreseeable injury to end users and third persons. Such duty arises from the Distributor Defendants' own affirmative conduct in supplying a dangerous and commonly misused intoxicant into a retail channel under circumstances indicating a high likelihood of unlawful diversion for recreational inhalation, including by minors. Such duty of care required these defendants

to employ reasonable precautions commensurate with the risk, including (by way of example and not limitation) refraining from supplying the retailer(s) in the quantities and manner alleged, limiting supply to amounts and to retailers consistent with legitimate use, and/or providing and requiring retention of prominent warnings and instructions addressing the dangers of inhalation and impairment. Such duties include, without limitation, obligations to:

- a. Reasonably evaluate, based on information available to the distributor (including the nature of the retail channel and the quantities/frequency of supply), whether continued distribution to a particular retailer poses a reasonably apparent risk of unlawful diversion to minors, and take reasonable precautions commensurate with that risk;
- b. Reasonably evaluate whether continued distribution to a particular retailer poses a reasonably apparent risk of diversion for recreational inhalation/impairment, in light of the distributor's course of dealing and the circumstances of distribution, and take reasonable precautions commensurate with that risk;
- c. To take reasonable measures, including limiting or ceasing distribution, when the distributor knew or had reason to know—based on red flags and circumstances of distribution—that continued supply to a retailer would likely facilitate unlawful diversion to minors and/or for recreational inhalation/impairment;
- d. To use reasonable care to provide and maintain adequate warnings and instructions in the distribution and retail chain regarding the foreseeable dangers of inhalation misuse, including rapid impairment, loss of consciousness, hypoxia/asphyxia, and death, and the dangers of driving or operating machinery after inhalation; to warn that the product is not intended for recreational inhalation and presents heightened risks to minors; and to provide reasonable warnings to retailers regarding applicable age-related restrictions and the risks of diversion to minors.

...

40. Defendants voluntarily undertook the duties set forth above. Defendants negligently breached these duties which were owed to Plaintiffs. Defendants Cali King Wholesale, Nevada Tobacco Distribution, and Does 5 through 50 breached their duty of care by distributing nitrous oxide canisters into the retail channel described above despite the quantities, frequency,

and nature of the retail channel making unlawful diversion for recreational inhalation reasonably apparent and foreseeable, and by failing to take reasonable precautions commensurate with that foreseeable risk. As a direct and proximate result of that unreasonable distribution conduct, the Decedents obtained and inhaled nitrous oxide, became dangerously impaired, and suffered the fatal injuries alleged herein.

(1AC, ¶¶ 27 – 34, 37, 40 [bold emphasis and underlining added].)

The foregoing is sufficient to allege that it was foreseeable that the Gold Whip products being distributed to Smoke Shop might be put to recreational purposes, and there were no warnings that foreseeable inhalation misuse could cause hazardous impairment, regardless of the age of persons who may engage in such recreational uses.

In addition to the concepts of fault and comparative fault as common to both negligence actions and those founded in strict products liability theory (citation omitted), the concept of foreseeability is involved in both types of actions. “In actions premised on strict products liability, just as in actions premised on negligence, an element of foreseeability is involved; liability may not be imposed unless the injury results from a use of the product which is reasonably foreseeable. (Citation omitted.) “ (Citation omitted.) Even if an injured plaintiff’s acts constituted misuse of a product, if those acts were foreseeable, strict liability may still apply, although the plaintiff’s comparative negligence might serve to reduce any award he or she might receive proportionate to such fault. (Citation omitted.) In apportioning and comparing fault, an injured plaintiff’s conduct is to be compared with the defendant manufacturer’s product, not the manufacturer’s conduct. (Citation omitted.)

(Milwaukee Electric Tool Corp. v. Superior Court (1993)
15 Cal.App.4th 547, 558 [bold emphasis and underlining added].)

It explained, “ [A] manufacturer owes a foreseeable user of its [*1113] product a duty to warn of risks of using the product.’ [Citation.] That is what appellants have alleged here.” (Ibid., italics added.) Put another way, Tellez-Cordova held that the defendant manufacturers were not being asked to warn of the risks arising exclusively from other manufacturers’ products. Instead, the plaintiffs sought to hold the defendants liable for failure to warn of risks created by the use of the defendants’ own products.

(Bettencourt v. Hennessy Industries, Inc. (2012) 205 Cal.App.4th 1103, 1112-13 [bold emphasis added].)

Hennessy claims plaintiffs have no cause of action in negligence because no duty of care exists. In Hennessy's view, the foreseeability of the harm is insufficient to give rise to a duty of care, and policy reasons preclude imposition of such a duty. Initially, we question Hennessy's framing of this issue. Under established California law, a manufacturer already owes a duty of care to foreseeable users of its product. (Citations omitted.) "Because the general duty to take ordinary care in the conduct of one's activities (Civ. Code, § 1714, subd. (a)) indisputably applies" to product manufacturers, "the issue is ... whether a categorical exception to that general rule should be made ..." in these circumstances. (Citation omitted.) Such an exemption is appropriate "only when foreseeability and policy considerations justify a categorical no-duty rule" (Citation omitted.)

(Bettencourt v. Hennessy Industries, Inc. (2012) 205 Cal.App.4th 1103, 1118 [bold emphasis and underlining added].)

As for the criminal

acts which Defendants claim are superseding causes, these are questions of fact to be resolved by a trier of fact (if not on summary judgment). For purposes of demurrer, at least, there are sufficient facts pled that it was not so highly unusual or extraordinary that Gold Whip distributed to Defendant's smoke shop would be misused recreationally by persons who would then engage in activities that are hazardous while the person is impaired:

Owners assert they are absolved from liability because Jesus's act was an intervening or superseding cause of decedent's death. (Citation omitted.) Under the circumstances of this case, that `superseding cause, Owners must establish as a matter of law that the intervening act was so highly unusual or extraordinary that the occurrence was not likely to happen and therefore was not foreseeable. (Citations omitted.) However, the defendant need only foresee the risk of harm, not the particular intervening act (citations omitted), and where the risk created by the breach of the duty is that the plaintiff is exposed to danger from criminal conduct, the criminal conduct is not automatically a superseding cause. (Citations omitted.)

(Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 289 [bold emphasis and underlining added].)

The first of these contentions is based upon the theory that Logan's criminal conduct was a superseding intervening cause (a theory accepted by the court as an alternative ground for its ruling).

Criminal conduct which causes injury will ordinarily be deemed the proximate cause of an injury, superseding any prior negligence which might otherwise be deemed a contributing cause. (See 6 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 992, pp. 382, 383.) However, "if the likelihood that a third person may act in a particular manner is the hazard or one of the hazards which makes the actor negligent, such an act whether innocent, negligent, intentionally tortious or criminal does not prevent the actor from being liable for harm caused thereby." (Citations omitted.)

(Koepke v. Loo
(1993) 18 Cal.App.4th 1444, 1449 [bold emphasis added].)

For
the foregoing reasons, the first cause of action is sufficiently pled against demurring Defendants.

The
demurrer to the first cause of action is OVERRULED.

Defendants
are to answer the First Amended Complaint within 10 days.